

25PSCV01351 25PSCV01351

County: los-angeles

Division: Civil Law and Motion

Department: H

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Case Number: 25PSCV01351 Hearing Date: September 10, 2026 Dept: H

Taylor

v. Delgado et al., Case No. 25PSCV01351

ORDER

ON EX PARTE APPLICATION TO PRECLUDE DEFENDANTS' SUPPLEMENTALLY DESIGNATED
EXPERT FROM TESTIFYING AT TRIAL

The

Court has read and considered Plaintiffs' Plaintiffs' ex parte application to preclude Defendants' supplementally designated expert from testifying at trial.

The Court elects to not call the matter for hearing, see *Wilburn v. Oakland Hospital* (1989) 213 Cal.App.3d 1107, 1111 [decision to hear oral argument is within the discretion of the court]), and rules on the application as follows:

The

Court construes the ex parte application as a motion in limine to be heard at the Final Status Conference in accordance with the Court's trial order. Given the Court's impacted calendar on September 10, 2026, the Court does not have sufficient time to prepare for and hold a hearing on that date. The Court further determines that the issues raised in the application can be adequately addressed and adjudicated at the Final Status Conference.

Pursuant

to the Court's trial order, any opposition to the application (as construed as a motion in limine) shall be filed and served by no later than September 16, 2026. Any reply shall be filed and served by no later than September 18, 2026.

The

Court will hear the matter, together with any other timely filed motions in limine, at the Final Status Conference on September 23, 2026.

For

the parties' convenience, the Court includes its standard trial order below:

The

parties are directed to carefully review this order and file pretrial documents in accordance with this order. The failure to exchange and file the pretrial items set forth below may result in the exclusion of witnesses and evidence at trial or other sanction.

At the

FSC, the Court will require the parties to provide the Court with information as to the efforts made by the parties to resolve the matter through settlement conference(s) and/or informal or formal mediation. The Court expects the parties to have exhausted their ability to resolve the matter prior to the FSC. Pursuant to Local Rule 3.25(f), all trial counsel must attend the FSC in person. The Court does not permit virtual appearances at FSCs.

At

least seven (7) calendar days prior to the FSC, the parties and counsel shall serve and file the following trial documents:

1.

Trial Briefs – Each party shall file a trial brief succinctly identifying: (1) the claims and defenses subject to litigation; (2) the legal and factual issues to be decided (with supporting points and authorities); (3) the relief claimed and the calculation of damages sought; (4) the ultimate facts or issues to which you will stipulate; (5) the major evidentiary issues anticipated; and (6) any other information that may assist the Court at trial. While this matter is set for court trial, the parties may wish to point the Court to CACI jury instructions applying to the claims and defenses at issue.

2.

Joint Witness List – The parties shall work together and file a joint list of all witnesses that each party intends to call, excluding impeachment and rebuttal witnesses. The joint witness list shall identify each witness by

name, specify which witnesses are experts, estimate the length of direct examination, cross-examination, and re-direct examination of each, and include a total of the number of hours for all witness testimony. The parties shall identify all potential witness scheduling issues and special requirements. The parties and counsel shall sign the joint witness list.

3.

Joint Verdict Forms – While this matter is set for court trial, the Court nonetheless requires a joint verdict form, so it is clear what specific issues and questions the parties would like the court to resolve. To that end, the parties shall prepare and file a joint proposed special verdict form (with interrogatories). If the parties cannot agree on a joint verdict form after a good faith meet-and-confer session conducted in person, over the phone, or via videoconference, each party must separately file a proposed verdict form.

4.

Joint Exhibit List – The parties shall prepare and file a joint exhibit list organized with columns identifying: (1) the exhibit, (2) which party is offering the exhibit, (3) whether there is a stipulation to authenticity and/or admissibility of the exhibit, (4) the date on which the exhibit was identified, and (5) the date on which the exhibit was admitted. Prior to filing the joint exhibit list, the parties shall meet and confer in person, over the phone, or via videoconference to determine whether they will stipulate to the authenticity and/or admissibility of each exhibit or whether there are objections to any exhibit. If there are stipulations, the parties shall note that in the respective column. If not, the objecting party shall specify all objections in the respective column. The parties and counsel shall sign the joint exhibit list.

5.

Page and Line Designations for Deposition and Former Testimony – If the parties intend to use deposition testimony or former trial testimony in lieu of any witness's live testimony, the parties shall meet and confer and jointly prepare and file a chart with columns for each of the following: (1) the page and line designations of the deposition or former testimony requested for use, (2) objections, (3) counter-designations, (4) any responses thereto, and (5) the Court's rulings. The objecting party shall specify all objections in the respective column. The parties and counsel shall sign the designations.

Motions

in Limine:

Motions

in limine will be heard at the time of the FSC. (See Local Rule 3.25(f)(2).) Motions in limine shall be filed and served fourteen (14) calendar days before the FSC. Any opposition to the motions in limine shall be filed and served seven (7) calendar days before the FSC. The moving party may file a reply brief three (3) calendar days before the FSC.

The

parties and counsel shall meet and confer in good faith prior to filing the motions in limine to attempt to reach a stipulation on the evidence and other issues. (See Local Rule 3.57(a)(2).) This meet-and-confer session shall take place in person, over the telephone, or via videoconference.

Motions

in limine shall not be used to seek (1) dispositive orders that should have been sought through a motion for summary judgment, summary adjudication, or judgment on the pleadings, or (2) rulings that are "declaratory of existing law or would not provide meaningful guidance for the parties or witnesses." (Kelly v. New West (1996) 49 Cal.App.4th 659, 670.)

When

filing motions in limine, the parties must comply with Local Rule 3.57, including the required declaration, if applicable. As explained below, the parties and counsel must provide a tabbed binder at the FSC containing all motions in limine, oppositions, and replies in sequential order consistent with the number assigned to each motion in limine. The binder also must contain a table of contents identifying each motion in limine, opposition, and reply, and the corresponding tab for each.

Trial

Binder:

The

parties and counsel shall provide a joint trial binder for the Court at the FSC. The trial binder shall be organized as follows:

Tab

A:

Trial Briefs

Tab

B:

Motions in Limine

Tab

C:

Joint Statement of the Case

Tab

D:

Joint Witness List

Tab

E:

Joint and/or Contested Verdict Forms

Tab

F:

Joint Exhibit List

Tab

G:

Joint Chart of Page and Line

Designations for Deposition and Former Testimony

Tab

H:

Copies of all Current Operative

Pleadings

Exhibits:

Pursuant

to Local Rules 3.52 and 3.53, the exhibits must be pre-marked using Arabic numerals and in instances where exhibits consist of multiple pages, each page must be numbered sequentially. The exhibits must be exchanged at least fourteen (14) calendar days before the FSC and lodged with the Court on the first day of trial. At least three sets of exhibit binders – tabbed and paginated – are

required on the first day of trial: one set each for the Court, Judicial Assistant, and witness. An exhibit binder must also be supplied to each opposing party.

The parties and counsel should be familiar with Local Rule 3.148, et seq., regarding trial exhibits, including, but not limited to, Rule 3.150 (requiring exhibit to be shown to opposing parties before first reference), Rule 3.152 (requiring exhibits to be moved into evidence as soon as the evidentiary foundation for their admission has been established), Rule 3.155 (governing publication of exhibits to jurors), and Rule 3.158 (use of depositions, interrogatories, and requests for admissions).

The moving parties (Plaintiffs Montes de Oca and Galvan) are directed to give notice.